

Defense to initiate that process.

This matter will be stayed until the mediation and arbitration process is exhausted.

The current CMC of 6/3/26, will remain, however, at which time the court will check on the progress of mediation and arbitration.

Defense to file Order.

10. 9:00 AM CASE NUMBER: L25-12479

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

HEARING ON DEMURRER TO: OR IN THE ALTERNATIVE MTC MEDIATION AND ARBITRATION WITH MTS

FILED BY: YADAV ENTERPRISES, INC.

TENTATIVE RULING:

Defendant has filed a Motion requesting the court to compel arbitration, but has also, in the alternative, Demurred to the Complaint.

Defendant's request was timely noticed. It is unopposed.

Background

The instant matter stems from a dispute over legal fees, where Plaintiff had performed legal services for Defendant in the case of Irene Johnson versus Coral Reef Inn and Suites.

The crux of the lawsuit is that Plaintiff alleges that Defendant has breached the fee agreement.

Defendant, in their Motion, contends that the agreement calls for mediation, followed by arbitration, before any litigation in court.

Defendant, in the Declaration attached to the Motion, refers to emails they sent to Plaintiff, in which they expressed their intent to ask the court to compel mediation and arbitration.

The Fee Agreement is apparently reflected in Exhibit B to the Motion. Without listing the language explicitly, Paragraph 9 quite clearly calls for the parties to first attempt to resolve any fee disputes through mediation; if that proves unsuccessful, arbitration is the next step. There doesn't appear to be any term in the agreement that requires either party to formally request mediation of the other party to trigger the process.

Analysis

In the instant matter, the intent of the term of the agreement covering fee disputes is quite clear: Parties need to start with mediation.

The court does not feel that the Demurrer is ripe for decision at this point, so will not rule on it.

Disposition

Defense's Motion to compel the mediation and arbitration process is granted.

Defense to initiate that process.

This matter will be stayed until the mediation and arbitration process is exhausted.

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Defense to file Order.

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The crux of the lawsuit is that Plaintiff alleges that Defendant has breached the fee agreement.

Defendant, in their Motion, contends that the agreement calls for mediation, followed by arbitration, before any litigation in court.

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